



AN ACT ESTABLISHING FACTORS THAT MUST BE CONSIDERED WHEN DETERMINING THE BEST INTERESTS OF A CHILD.

WHEREAS, children and minors are too often an afterthought in policymaking even though every aspect of government policy impacts kids, from health care to transportation. The government has no way to evaluate whether policies would be good or bad for children, and no unified standard to use for that evaluation; and

WHEREAS, due to the age of children and minors and their dependency, maturity, and lack of mechanisms to make the case for their own interests and needs, children depend on adults in society and government to support their health and well-being; and

WHEREAS, without a clear mandate to consider their needs, children will continue to be disregarded in policy decisions that impact their lives and well-being; and

WHEREAS, a "best interests of the child" standard is the priority of policymaking that creates a benchmark through which all policies can be evaluated and would make positive outcomes for children.

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

**Section 1. Best interests of child -- factors to consider.** (1) In any circumstance in which the best interests of a child must be determined, the following factors, to the extent they are present, must be considered but are not exhaustive:

- (a) the physical and emotional safety of the child;
- (b) the temperament and developmental needs of the child;
- (c) the capacity and the disposition of the parents to understand and meet the needs of the child;
- (d) any relevant and material information obtained from the child, including the informed

preferences of the child;

- (e) the wishes of the child's parents as to custody;
  - (f) the past and current interaction and relationship of the child with each parent, the child's siblings, and any other person who may significantly affect the best interests of the child;
  - (g) the importance of family integrity, the emotional ties, and relationships between the child and the child's parents, siblings, family, household members, or other caregivers;
  - (h) the willingness and ability of each parent to facilitate and encourage continuing parent-child relationship between the child and the other parent as is appropriate, including compliance with any court orders;
  - (i) any manipulation by or coercive behavior of the parents in an effort to involve the child in the parents' dispute;
  - (j) the ability of each parent to be actively involved in the life of the child;
  - (k) the child's adjustment to the child's home, school, and community environments;
  - (l) the capacity of the parents to provide a stable home and adequate food, clothing, and medical care may not be based solely on the socioeconomic status of a parent;
  - (m) the mental and physical health of all individuals involved, except that a disability of a proposed custodial parent or other party, in and of itself, may not be determinative of custody unless the proposed custodial arrangement is not in the best interests of the child;
  - (n) the child's cultural background;
  - (o) the effect on the child exposed to an offense identified in 45-5-202, 45-5-206, 45-5-213, or 45-5-215 against a partner or family member in the presence of the child by a predominant aggressor;
  - (p) whether the child or a sibling of the child has been abused or neglected, as defined in 41-3-102; and
  - (q) whether the party satisfactorily completes participation in a parenting education program established pursuant to a court directive.
- (2) A court is not required to assign any weight to any of the factors that it considers but shall articulate the basis for its decision.

**Section 2. Codification instruction.** [Section 1] is intended to be codified as a new part in Title 41, chapter 1, and the provisions of Title 41, chapter 1, apply to [section 1].

- END -

I hereby certify that the within bill,  
SB 466, originated in the Senate.

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Secretary of the Senate

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President of the Senate

Signed this \_\_\_\_\_ day  
of \_\_\_\_\_, 2025.

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Speaker of the House

Signed this \_\_\_\_\_ day  
of \_\_\_\_\_, 2025.

SENATE BILL NO. 466

INTRODUCED BY D. LENZ

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